

HOUSE No. 3631

The Commonwealth of Massachusetts

PRESENTED BY:

Antonio F. D. Cabral

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to build future-forward parking structures to promote EV equity and walkable downtowns.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Antonio F. D. Cabral</i>	<i>13th Bristol</i>	<i>1/16/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>1/30/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>2/4/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>2/5/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/12/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>3/5/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>3/18/2025</i>

HOUSE No. 3631

By Representative Cabral of New Bedford, a petition (accompanied by bill, House, No. 3631) of Antonio F. D. Cabral and others for legislation to establish a program for the construction, reconstruction, and renovation of municipal parking facilities to provide electric vehicle charging stations. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3276 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to build future-forward parking structures to promote EV equity and walkable downtowns.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 The General Laws, as appearing in the 2022 Official Edition, is hereby amended by
2 inserting after Chapter 40Y, the following section:

3 Chapter 40Z. Equitable EV Facilities Matching Fund

4 Section 1. (a) There shall be established a financing program for the construction,
5 reconstruction, and renovation of municipal parking facilities to provide electric vehicle charging
6 stations, as defined in section 16 of chapter 25A and as provided in clause (b) of the second
7 paragraph of section 4 of chapter 6C of the General Laws. The appropriation shall be considered
8 an available fund upon approval of the commissioner of revenue pursuant to section 23 of

chapter 59 of the General Laws. As provided in section 9G of chapter 29 of the General Laws, within 60 days after receipt by the Department of a request for reimbursement from the city or town, which request shall include certification by the city or town that actual expenses have been incurred on projects eligible for reimbursement under this item and that the work has been completed to the satisfaction of the city or town according to the specifications of the project and in compliance with applicable laws and procedures established by the department.

(b) A city or town shall comply with the procedures established by the Massachusetts Department of Transportation (“Department”), including submitting a financing plan to be certified by the Department.

(1) Prior to reimbursement, a city or shall submit each eligible project for certification by the Department and must meet, at a minimum, the following performance standards:

(i) Facilitate the reduction and redevelopment of surface parking in downtown areas;

(ii) Provide affordable and accessible electric vehicle (EV) charging infrastructure to residents of dense multifamily neighborhoods;

(iii) Support additional housing production and transit-oriented growth, as demonstrated by local zoning and parking requirements;

(iv) Incorporate context-sensitive urban design and promote a safe, active streetscape that encourages walking; and

(v) A financing plan that covers the local share of the project cost.

Section 2. Electric Vehicle Charging Station Matching Fund

29 In order to assist in establishing a financing program for the construction, reconstruction,
30 and renovation of municipal parking facilities to provide electric vehicle charging stations in the
31 state, there is hereby established a fund to be known as the Electric Vehicle Charging Station
32 Matching Fund, hereinafter referred to as the matching grant fund, to which shall be credited the
33 proceeds of bonds or notes of the commonwealth issued for the purpose, and any appropriations
34 designated by the general court to be credited thereto. The commonwealth shall reimburse a city
35 or town under this item based on the city or town's median income ranging from 30 per cent to
36 80 per cent. The matching grant fund shall be administered by the Department. The Department
37 shall hold the matching grant fund in an account or accounts separate from other funds of the
38 Department. The purpose of the matching grant fund shall be to provide funds for capital
39 expenditures to be made in connection with projects which are sponsored by cities and towns.